

liable for not fulfilling 'clearly established' obligations when a federal Circuit Court of Appeals was unable to unanimously decide the same issue" (Harris v. Young, 718 F.2d 620, 624 (4th Cir. 1983)).^{48/} As long as there is a "legitimate question" about the constitutionality of particular conduct, "it cannot be said that *** [such conduct] violates clearly established law" (Mitchell v. Forsyth, 53 U.S.L.W. at 4804 n.12).

^{48/} A useful articulation of this point appears in McSurely v. McClellan, 753 F.2d at 100, in which the court of appeals sustained a qualified immunity claim for conduct that previously had divided the court when the constitutional issue was addressed:

It would be flatly inconsistent with Harlow to strip away the Senate defendants' immunity in this case simply because "[they were] not more perceptive of constitutional principles . . . than [five] federal judges of this Circuit." Ward v. Johnson, 690 F.2d 1098, 1112 (4th Cir. 1982)(en banc). Public officials, Harlow and Davis underline, "must not be held to act at [their] peril" when maneuvering in legal realms governed by rules "that even learned and experienced jurists have had difficulty in defining." Bivens v. Six Unknown Named Agents of the Federal Bureau of Narcotics, 456 F.2d 1339, 1348 (2d Cir. 1972) (on remand); accord id. at 1349 (Lumbard, J., concurring) ("[F]ederal officers cannot be expected to predict what federal judges frequently have considerable difficulty in deciding and about which they frequently differ among themselves.").

See also, Zweibon IV, 720 F.2d at 169 (noting that "six separate opinions and over one hundred pages of analysis" expended on the underlying constitutional question in an earlier opinion in the case "'be[lieves] any suggestion that the Court was confronted with a simple issue automatically controlled by earlier decisions'").

It seems obvious from Harlow and Davis that qualified immunity should be resolved by the judge since "a jury is [not] competent to decide the 'state of the law'" (McKinney v. Trattles, 732 F.2d at 1324). The whole purpose of Harlow's "adjustment" of the qualified immunity standard was to avoid extensive pretrial and trial proceedings which the Supreme Court found "peculiarly disruptive of effective government" (457 U.S. at 815, 818). This point was reinforced by the Supreme Court's holding in Mitchell v. Forsyth, 53 U.S.L.W. at 4802-03, that district court orders denying qualified immunity claims must be immediately appealable to protect the "defendant's claim of right not to stand trial on the plaintiff's allegations" (id. at 4802, emphasis in original).

Nonetheless, some courts have concluded that, in certain situations, trial still is required to resolve the qualified immunity claim. This generally has occurred where the government actor's purpose is deemed determinative of whether he violated clearly established law. As the Eighth Circuit explained in a discrimination action:

By definition, there can be no liability in such an action unless the plaintiff shows that the defendant intentionally discriminated against her because of her sex. If the jury finds that intentional discrimination has occurred, and if, as in this case, the evidence is sufficient to support that finding, "good faith" on the part of the defendant is logically excluded.

Goodwin v. Circuit Court of St. Louis Co., Mo., 729 F.2d 541, 545-56 (8th Cir. 1984)(citations omitted).^{49/} Similar results have appeared in Eighth Amendment cases^{50/} and in suits which turn on the existence of probable cause.^{51/}

^{49/} See also Stathos v. Bowden, 718 F.2d 15, 19-20 (1st Cir. 1984)(where plaintiff claims a discriminatory purpose a separate jury instruction on qualified immunity would be "superfluous").

^{50/} See Albers v. Whitley, 743 F.2d 1372, 1376 (9th Cir. 1984), cert. granted, 53 U.S.L.W. 3869 (U.S. June 10, 1985) (discussing the overlap between the merits and qualified immunity in an Eighth Amendment case and concluding: "A finding of deliberate indifference is inconsistent with a finding of good faith or qualified immunity. The two findings are mutually exclusive."); cf. Miller v. Solem, 728 F.2d 1020, 1024-25 (8th Cir.), cert. denied, 105 S.Ct. 145 (1984).

^{51/} For example, the Third Circuit has held that "both [probable cause and qualified immunity] turn on the reasonableness of the [defendant officials'] actions in arresting and detaining [plaintiff] -- a determination which we have held presents a question of fact for the jury" (Deary v. Three Un-Named Police Officers, 746 F.2d 185, 192 (3d Cir. 1984)). See also, B.C.R. Transport Co., Inc. v. Fontaine, 727 F.2d 7, 10 (1st Cir. 1984)("This determination, being one turning on the reasonableness of [defendant's] conduct, was properly left for a jury to resolve."); Trejo v. Perez, 693 F.2d at 486-88.

Decisions which conflate the immunity and probable cause issues raise two problems. First, courts have long recognized that an officer "need not allege and prove probable cause in the constitutional sense" to be protected by qualified immunity (Bivens v. Six Unknown Named Agents of Fed. Bur. of Narcotics, 456 F.2d at 1348). He need only establish that the probable cause determination was reasonable (*ibid.*), which after Harlow is an objective evaluation. Moreover, the Supreme Court now has held that probable cause, itself, should not be resolved on the basis of the officer's subjective intent in view of the policies underlying the Court's decision in Harlow: (Cont.)

the defendant official's unconstitutional purpose or intent cannot be resolved by summary judgment.^{52/}

^{51/} (Cont.)

In Harlow, we eliminated the subjective element of the qualified immunity public officials enjoy in suits seeking damages for alleged deprivations of constitutional rights. The situations are not perfectly analogous, but we also eschew inquiries into the subjective beliefs of law enforcement officers who seize evidence pursuant to a subsequently invalidated warrant. *** Accordingly, our good-faith inquiry is confined to the objectively ascertainable question whether a reasonably well-trained officer would have known that the search was illegal despite the magistrate's authorization.

United States v. Leon, 104 S.Ct. 3405, 3421 n.23 (1984). The Supreme Court next Term will consider whether a magistrate's authorization of an arrest warrant conclusively immunizes the arresting officer or whether a plaintiff still could defeat the qualified immunity claim by showing that the defendant officer reasonably should have known that there was no probable cause for arrest (see Briggs v. Malley, 748 F.2d 715 (1st Cir. 1984), cert. granted, 53 U.S.L.W. 3838 (U.S. May 28, 1985)).

^{52/} In a First Amendment case, the Fifth Circuit went so far as to characterize this as a "typical" problem in Bivens cases, explaining that the Court in Harlow "did not entirely eliminate subjective inquiry from every qualified immunity analysis" since "some rights *** might be violated by actions undertaken for an impermissible purpose but not by the same actions undertaken for permissible purposes" (Kenyatta v. Moore, 744 F.2d 1179, 1185 (5th Cir. 1984), cert. denied, 53 U.S.L.W. 3777 (U.S. Apr. 29, 1985)).

A similar conclusion was reached by the District of Columbia Circuit in Hobson v. Wilson, 737 F.2d at 27-29. In an effort to reconcile its holding with Harlow, however, the court of appeals held that "in cases involving a claim that defendants acted with an unconstitutional motive, we will require that nonconclusory allegations of evidence of such intent must be present in a complaint for litigants to proceed to discovery on the claim" (id. at 29; see also id. at 29-31). Such allegations "need not be extensive, but they will have to be sufficiently precise to put (Cont.)

Although this reasoning is not without some force, these decisions cannot be reconciled with what the Supreme Court said in Harlow and Davis. As noted earlier, the impetus for changing the qualified immunity standard in Harlow was the Court's candid recognition that (457 U.S. at 816):

Rule 56 of the Federal Rules of Civil Procedure provides that disputed questions of fact ordinarily may not be decided on motions for summary judgment. And an official's subjective good faith has been considered to be a question of fact that some courts have regarded as inherently requiring resolution by a jury.

Since Harlow dropped the subjective inquiry precisely to remedy this problem, it would be incongruous to conclude now that Rule 56 precludes summary resolution of qualified immunity claims because an official's intent is a question of fact for the jury. Indeed, any question about this should have been laid to rest by Davis, where the Supreme Court unequivocally reaffirmed that Harlow "rejected the inquiry into state of mind in favor of a wholly objective standard" (104 S.Ct. at 3018). As a consequence, in those cases where purpose is determinative of whether clearly established law was violated, the defendant official's purpose, wherever possible, should be determined by reference to objective factors without regard to his actual state of

^{52/} (Cont.) defendants on notice of the nature of the claim and enable them to prepare a response and, where appropriate, a summary judgment motion on qualified immunity grounds" (id. at 29).

mind.^{53/} At the very least, it should be argued that Harlow and Davis squarely place the burden on the plaintiff to "be prepared with a prima facie case of defendant's knowledge of impropriety, actual or constructive" (Krohn v. United States, 742 F.2d 24, 31-32 (1st Cir. 1984)).^{54/} And as in any case involving qualified immunity, care must be taken to distinguish undisputed material facts from disputed facts which, while material to other issues, are immaterial to the question of immunity (see Tubbesing v. Arnold, 742 F.2d 401, 403-07 (8th Cir. 1984)).

Finally, it should be noted that qualified immunity is not automatically forfeited whenever an official does violate clearly established law. In Harlow, the Supreme Court

^{53/} Although each case will differ, occasionally the objective reasonableness of an official's conduct can be established simply by showing that it conformed with internal procedures or policy. See, e.g., Moore v. Zarra, 700 F.2d 329, 330 (6th Cir. 1983); Ohland v. City of Montpelier, 467 F. Supp. 324, 340-41 (D.Vt. 1979). In other cases, it might be possible to satisfy Harlow by citing to an objective contemporaneous documentary record to demonstrate a proper purpose. See, e.g., Smith v. Nixon, 582 F. Supp. 709, 715 (D.D.C. 1984), on appeal (noting that "deposition questions regarding 'purpose' or 'rationale' are not segregable from improper inquiries into 'motive'" and must be avoided under Harlow). It might be noted that a claim of improper purpose was advanced in Mitchell v. Forsyth, but the Court did not accord any particular significance to the argument (see 53 U.S.L.W. at 4805 n.13).

^{54/} The court of appeals in Krohn continued: "To hold less would defeat the entire purpose of freeing government officials from having to defend insubstantial suits" (742 F.2d at 32). For a similar view in the Fifth Circuit, see Elliot v. Perez, 751 F.2d 1472 (5th Cir. 1985), discussed at pages 64-65 n.69, infra.